

Risk neutral

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.165	0.165	0.009	0.278	0.105
Trial Fee-Shifting	0.162	0.162	0.018	0.278	0.105

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.163	0.165	0.004	0.286	0.084
Trial Fee-Shifting	0.158	0.165	0.006	0.282	0.085